ESCHEAT

Encyclopaedia Britannica (1771)

Historical source

Entry ID: `entry-escheat-1473`
Volume ID: 149979622
Character Count: 986

Extracted Text

ESCHEAT, in law, signifies any lands or ten- parts that cafinally fail to a Lord within his manor. It is one of the confeugeures of tenure in divary (See _Fiona Sylpa, Amoran-Serous_, and Texas). If the determination of the course are diflutions of the mutual bond between the loud and tenans, from the extinction of the blood of the latter by other ana- ural or crist means : if the deck without hers of his blood, or if his blood the company and named by comunition of coercion or fidory; whereby every hori- britable quality was entirely blasted out and doubled, fa fault, cakes the hand echated or fell back to the lost of the cry that is, the teens was determined by breach of the original condition, esperified or implied in the fetal donation. In later once cats, there were no here inhibiting of the blood of the fork tettatory or puchader, to which hers alone the grant of the feed extended: in the other, the tenant, by perpe- trating an atrocious crime, showed that he was no

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  Filename: `page-1473-b3b602ef6a3d.jpg`
  Row Index: 1473
  SHA256: `b3b602ef6a3d4961...`

Eſarhaddon ‖ Eſchara.

ESARHADDON, the ſon of Sennacherib, and his ſucceſſor in the kingdom of Aſſyria. He is ſaid to have reigned 29 years at Nineveh, from the year 3294 to 3322; beſides which he reigned 13 years at Babylon, in all 42 years. He died in the year of the world 3336, and was ſucceeded by Saoſduchinus. Eſarhaddon, in the opinion of Sir Iſaac Newton, ſeems to be the Sardanapalus who died, as Cleſtarchus ſays, of old age, after the revolt of Syria; the name *Sardanapalus* being derived from *Aſſerhadon Pul*.

ESCALADE, or SCALADE, a furious attack of a wall or a rampart; carried on with ladders, to paſs the ditch or mount the rampart; without proceeding in form, breaking ground, or carrying on regular works to ſecure the men.

When the troops are prepared to paſs the ditch, either with the aſſiſtance of boards, hurdles, and faſcines, when it is muddy, or with ſmall boats of tin, or baſkets covered with ſkins or oil-cloth, when it is deep and filled with water, a party muſt be placed on the counterſcarp, oppoſite to the landing-place, ready to fire at the garriſon if they are alarmed, and oppoſe the mounting on the rampart. If the ditch is dry, the ladders are fixed in ſome place fartheſt diſtant from the centry; and as ſoon as they get upon the rampart, they put themſelves in order to receive the enemy; if the centry ſhould be ſurpriſed and ſilently overcome, the detachment haſtens to break open the gate, and to let in the reſt of the party. If the ditch is wet, the rampart high, and provided with a revetement, it will be difficult to ſurpriſe the town in this way; but if there is no revetement, the troops may hide themſelves along the outſide of the rampart till all are over. Since the invention and uſe of gunpowder, and the walls of cities have been flanked, they are ſeldom taken by eſcalade.

ESCALLONIA, in botany: A genus of the monogynia order, belonging to the pentandria claſs of plants. The fruit is bilocular and polyſpermous; the petals diſtant and tongue-ſhaped; the ſtigma headed.

ESCAPE, in law; a violent or privy evaſion out of ſome lawful reſtraint, without being delivered by due courſe of law. There are two ſorts of eſcapes, voluntary and negligent. Voluntary, when a man arreſts another for felony, or other crime, and afterwards lets him go freely by conſent; in which caſe, the party that permits ſuch eſcape is held guilty, committed, and muſt anſwer for it. Negligent eſcape, on the contrary, is where one is arreſted, and afterwards eſcapes againſt the will of the perſon that arreſted him, and is not purſued with freſh ſuit, and retaken before the perſon purſuing hath loſt ſight of him. By ſtat. 8 and 9 Will. III. c. 26. the keepers of priſons conniving at eſcapes ſhall forfeit 500l; and in civil caſes the ſheriff is anſwerable for the debt.

ESCHALOT, or SHALLOT. See ALLIUM.

ESCHAR, in ſurgery, the cruſt or ſcab occaſioned by burns or cauſtic medicines.

ESCHARA, in natural hiſtory, the name of a ſpecies of coralline, &c. the characters of which are theſe: they are of a ſtony or coral-like hardneſs, and reſemble a woven cloth in their texture; and the microſcope informs us, that they conſiſt of arrangements of very ſmall cells, whoſe ſurfaces appear much in that form. Linnæus makes it a ſpecies of millepora, in the claſs of lithophytes. See Plate CXLVIII. fig. 9. 10. Eſchara, Eſchear.

The narrow-leaved hornwrack, fig. 9. divides as it riſes, into narrow leaves made up of regular rows of oblong ſquare-ſhaped cells placed alternately by each other, and oppoſite to an equal number on the other ſide of the leaf, like an honeycomb: from theſe leaves proceed other ſtill ſmaller foliaceous ramifications, many of which ſeem to be connected at the lower part by tubuli, as in the corallines; by which means they can ply to and fro more freely in the water.—*e*, Gives the natural appearance of this coralline. E repreſents two leaves with their tubuli and cells magnified. E 1 is a croſs ſection of one of the leaves at E, ſhowing the partition and inner form of their cells.

The broad-leaved hornwrack, fig. 10. when freſh taken out of the ſea, is of a ſpongy ſoft texture, and ſmells very filthy; but when it has lain for ſome time on the ſhore, it becomes ſtiff and horny, like ſome ſort of withered leaves. Both ſurfaces, when examined by glaſſes, appear to be covered with cells; and, when a piece of it is cut acroſs, one may diſcover the thin membrane that ſerves as a baſe to the cells of each ſurface. The form of the cells is very remarkable, each one being arched at the top, and contracted a little at the lower part of the ſides to make way for the arches of the two next adjoining cells; ſo that by this particular conſtruction no room is loſt. The entrance of the cells is immediately under the arch of each cell, and the walls of the cells ſeem to be fortified with ſpines. Juſſieu diſcovered ſmall polypes extending themſelves out of theſe cells, which he has deſcribed in the memoirs of the Academy of Sciences 1742.—*f*, Gives the natural appearance of a leafy branch of this coralline. F is a part of a leaf magnified to ſhow the ſuperficial figure of the cells, and the manner in which they are diſpoſed. F 1 ſhows a croſs ſection of a leaf, and diſcovers the ſeveral partitions of the cells.

At the entrance of many of the cells a ſmall teſtaceous body like a bivalve ſhell is diſcovered: F 2, the figure of the cell, with the ſhell in it; it is of a tranſparent amber colour, ſo clear that one may ſee the dead animal through it, repreſented by the black ſpot.

ESCHEAT, in law, ſignifies any lands or tenements that caſually fall to a lord within his manor. It is one of the conſequences of tenure in chivalry: (See *FEODAL Syſtem*, *KNIGHT-Service*, and TENURE). It is the determination of the tenure or diſſolution of the mutual bond between the lord and tenant, from the extinction of the blood of the latter by either natural or civil means: if he died without heirs of his blood, or if his blood was corrupted and ſtained by commiſſion of treaſon or felony; whereby every inheritable quality was entirely blotted out and aboliſhed. In ſuch caſes the land eſcheated or fell back to the lord of the fee; that is, the tenure was determined by breach of the original condition, expreſſed or implied in the feodal donation. In the one caſe, there were no heirs ſubſiſting of the blood of the firſt feudatory or purchaſer, to which heirs alone the grant of the feud extended: in the other, the tenant, by perpetrating an atrocious crime, ſhowed that he was no

Figure 1: *
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